

conditions in the premises including leaking sewage, deteriorated flooring, falling ceiling, leaking roof, broken windows, and other unsafe and dangerous conditions . . . [and] alleged defendants 'In maintaining said nuisance, . . . acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive and malicious.' (*Stoiber, supra*, at 920 [citation omitted].) "Inasmuch as Civil Code section 3294 requires as a prerequisite to the recovery of punitive damages that the defendant 'has been guilty of oppression, fraud, or malice,' the cases have uniformly recognized that proof of negligence, even gross negligence, or recklessness is insufficient to warrant an award of punitive damages." (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 87.)

Plaintiffs pleaded sufficient facts to support their prayer for punitive damages. They allege that Defendants had knowingly subjected them to defective conditions in the premises, including pest and rodent infestations, electrical and structural hazards, water damage, and security failures, and continued to ignore repair obligations while collecting rent and exposing tenants to dangerous conditions. (Comp. ¶¶ 19, 22–23, 24–39, 45–49, 50–58, 69–70, 86–93, 126–133, 142–154.) Plaintiffs further allege that Defendants had actual notice of these defects through tenant complaints and inspections but intentionally failed to act for years, subjecting Plaintiffs to physical illness, anxiety, humiliation, and loss of use and value in their leasehold. (Comp. ¶¶ 126–133, 149–150.) This is sufficient at the pleadings stage.

5.

| CASE #      | CASE NAME         | HEARING NAME     |
|-------------|-------------------|------------------|
| CVME2502919 | BEARDEN VS NIJJAR | MOTION TO STRIKE |

**Tentative Ruling: See above.**

6.

| CASE #      | CASE NAME                                               | HEARING NAME                                                                                          |
|-------------|---------------------------------------------------------|-------------------------------------------------------------------------------------------------------|
| CVME2600116 | INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB VS BERRY | PETITION FOR SUPERIOR COURT CASE NUMBER FOR THE PURPOSE OF ISSUING SUBPOENAS TO WITNESS FOR DOCUMENTS |

**Tentative Ruling: : Case was dismissed June 3, 2026.**

7.

| CASE #      | CASE NAME                             | HEARING NAME                                         |
|-------------|---------------------------------------|------------------------------------------------------|
| CVME2604572 | ALLY BANK VS GARRETT CONSTRUCTION LLC | NOTICE OF WRIT OF APPLICATION FOR WRIT OF POSSESSION |

**Tentative Ruling: Writ of Possession is GRANTED.**